



United States
Attorney's Office
District of New Jersey



Operators of New Jersey Company Sentenced to Prison and Enter into Related Civil Settlement Agreement for Roles in \$127 Million Health Care Fraud and Kickback Scheme

Monday, April 21, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – Two operators of a New Jersey marketing company were sentenced to prison for their roles in conspiracies to commit health care fraud and to pay and receive illegal kickbacks, United States Attorney Alina Habba announced.

Eric Karlewicz a/k/a "Anthony Mazza," 46, of Rockland County, New York, and Nicco Romanowski, 33, of Roswell, Georgia, were sentenced by U.S. District Judge Esther Salas in Newark federal court following their guilty pleas to Informations charging conspiracy to violate the Federal Anti-Kickback statute and conspiracy to commit health care fraud. Karlewicz was sentenced to 51 months in prison and Romanowski was sentenced to 80 months in prison.

According to documents filed in this case and statements made in court:

From in or around June 2017 through in or around May 2019, Karlewicz and Romanowski participated in a scheme with durable medical equipment ("DME") companies, telemedicine companies, and doctors to submit false claims to health care benefit programs, including Medicare and TRICARE, based on a circular scheme of kickbacks and bribes. Karlewicz and Romanowski controlled a New Jersey-based marketing company, Empire Pain Center Holdings LLC ("Empire"), through which they and their co-conspirators identified Medicare and TRICARE beneficiaries to target. Employees of Empire called the beneficiaries to pressure them to agree to accept DME, frequently consisting of back, shoulder, and knee braces. Karlewicz and Romanowski paid Empire's employees commissions, bonuses, and incentives to encourage them to convince as many beneficiaries as possible to accept DME, regardless of medical necessity.

Karlewicz and Romanowski, through Empire, then paid kickbacks to telemedicine companies, which in turn paid kickbacks to doctors in exchange for prescriptions for the DME. As agreed upon, the doctors signed the prescription orders regardless of medical necessity, often without ever speaking to the patient. Karlewicz and Romanowski distributed the prescriptions to DME suppliers around the country, with which Empire had additional kickback arrangements. These DME suppliers submitted claims for reimbursement to health care benefit programs including Medicare and TRICARE, and thereafter sent a portion of the proceeds to Empire as payment for the doctor's orders generated through the conspiracy. Empire received more than \$63 million from DME suppliers in exchange for the referrals.

In total, Karlewicz and Romanowski caused the submission of false and fraudulent claims to health care benefit programs totaling in excess of \$127 million for DME. Using proceeds from the scheme, Karlewicz and Romanowski purchased luxury vehicles, including a Ferrari, and Lamborghini, a Bentley, and a BMW.

In addition to the prison terms, Judge Salas sentenced each defendant to three years of supervised release and ordered them to pay \$127,600,000 in restitution. Karlewicz was ordered to forfeit over \$63 million, and Romanowski was ordered to forfeit over \$5.5 million.

United States Attorney Habba also announced that Karlewicz and Empire entered into a civil settlement agreement. As part of that civil settlement agreement, Karlewicz and Empire admitted to violating the False Claims Act and agreed to the entry of a consent judgment against them in the amount of \$63.8 million.

The civil settlement agreement resolves a lawsuit filed under the whistleblower provision of the False Claims Act, which permits private parties, called relators, to file suit on behalf of the United States for false claims and share in a portion of the government's recovery. The relator, Robert Jackson Tyler, Jr., will receive a share of the funds recovered by the United States pursuant to the False Claims Act.

United States Attorney Habba credited special agents of the FBI, under the direction of Acting Special Agent in Charge Terence G. Reilly in Newark, U.S. Department of Health and Human Services Office of Inspector General, under the direction of Special Agent in Charge Naomi Gruchacz, and U.S. Department of Defense, Office of Inspector General, Defense Criminal Investigative Service, Northeast Field Office, under the direction of Acting Special Agent in Charge Christopher Silvestro, with the investigation.

The government is represented in the criminal case by Assistant U.S. Attorney Katherine M. Romano of the Health Care Fraud Unit and Senior Trial Counsel Barbara Ward of the Bank Integrity, Recovery, and Money Laundering Unit in Newark.

The government is represented in the civil case by Assistant U.S. Attorney David V. Simunovich of the Health Care Fraud Unit and Trial Attorney Martha Glover of U.S. Department of Justice, Civil Fraud Section.

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Defense counsel: Darren Gelber, Esq. (for Eric Karlewicz)

Alyssa Cimino, Esq. (for Nicco Romanowski)

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Topic

HEALTHCARE FRAUD

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